

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 8112 amending the amended law of February 14, 1955 concerning the regulation of traffic on all public roads and regarding the draft Grand-Ducal regulation amending the amended Grand-Ducal regulation of January 26, 2016 on the technical inspection of road vehicles
Deliberation No. 61/AV35/2023 of July 14, 2023.

1.

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

2.

On February 8, 2023, the CNPD was notified of Bill No. 8112 amending the amended law of February 14, 1955 concerning the regulation of traffic on all public roads and regarding the draft Grand-Ducal regulation amending the amended Grand-Ducal regulation of January 26, 2016 on the technical inspection of road vehicles (hereinafter referred to as the "draft bill").

3.

On May 4, 2023, the Mobility and Public Works Commission adopted a series of amendments related to the draft bill (hereinafter referred to as the "amendments").

1 Deliberation No. 12/AV6/2023 of February 8, 2023, parliamentary document 8112/03.
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4.

By letter dated May 22, 2023, the Minister of Mobility and Public Works invited the National Commission to express its opinion regarding these amendments.

5.

Insofar as the bill and the draft Grand-Ducal regulation transpose Directive 2014/45/EU into national law and accompany Regulation (EU) 2019/631 and Implementing Regulation (EU) 2019/392, the National Commission refers, concerning the legal framework of the Implementing Regulation, to the formal observations of January 14, 2021, from the European Data Protection Supervisor regarding the control and communication of data related to CO2 emissions from passenger cars and light commercial vehicles in accordance with Regulation (EU) 2019/631 of the European Parliament and of the Council, repealing Implementing Regulations (EU) No. 1014/2010, (EU) No. 293/2012, (EU) 2017/1152, and (EU) 2017/11532, and will limit its observations to the legal provisions concerning the concrete implementation of these instruments in Luxembourg. Furthermore, it will limit its observations in the context of this supplementary opinion to the modifications made to aspects already commented on in its aforementioned opinion of February 8, 2023.

6.

In its initial opinion, the National Commission raised the point that the data collected during the

technical inspection should be considered personal data within the meaning of Article 4, point 1, of the GDPR, as they can be linked, notably through the vehicle identification number (VIN), to an identified or identifiable natural person such as the owner or holder of the vehicle. Thus, the operations applied by the technical control bodies to the technical data as well as to the information regarding the functional and technical status of the vehicle constitute processing of personal data within the meaning of Article 4, point 2, of the GDPR and are therefore subject to the GDPR.

7.

Insofar as the processing will be carried out in accordance with a legal obligation, the CNPD recalled the particular constraint of Article 6.3 of the GDPR, according to which this legal basis:

2 Available at: https://edps.europa.eu/data-protection/our-work/publications/comments/edps-formal-comments-draft-commission-implementing_en.

3 See in this regard: European Data Protection Board (EDPB), Guidelines 01/2020 on the processing of personal data in the context of connected vehicles and mobility-related applications, points 29 and 62, available at: https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-012020-processing-personal-data-context_en.

4 Article 6.1, read together with its paragraph (1) letters e) and f), states that: "The basis for processing referred to in paragraph 1, points e) and f), is defined by:

a. the law of the Union; or

b. the law of the Member State to which the controller is subject.

The purposes of the processing are defined in this legal basis or, with regard to the processing referred to in paragraph 1, point e), are necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data that are subject to processing; the data subjects; the entities to which the personal data may be communicated and the purposes for which they may be communicated; the limitation of purposes; the retention periods; and the processing operations and procedures.

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regarding draft law No. 8112 amending the amended law of February 14, 1955 concerning the regulation of traffic on all public roads and regarding the draft Grand-Ducal regulation amending the amended Grand-Ducal regulation of January 26, 2016 on the technical control of road vehicles

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should establish specific provisions aimed at determining, among other things, the types of data processed, the entities to which the data may, where applicable, be communicated and for what purposes, the retention periods for the data, as well as the operations and procedures for processing.

8.

It is commendable that the authors of the amendments sought to clarify the categories of data extracted from the vehicle through the use of the OBD system. Furthermore, four new paragraphs aim to create a legal basis for the personal data file related to technical inspections, the purposes of which are specified. Indeed, on one hand, it is intended to enable the management of technical inspection operations and the calculation of the validity periods of the technical inspection, and on the other hand, to comply with the obligations to communicate data related to CO2 emissions imposed by the aforementioned implementing regulation (EU) 2021/392.

9.

Moreover, the amendments specify that the Minister responsible for transport is the data controller, within the meaning of Article 4 point 7 of the GDPR, while the national vehicle inspection company ("SNCA") and the State Information Technology Center ("CTIE") are considered processors within the meaning of Article 4 point 8 of the GDPR. The CNPD recalls in this regard that these qualifications will entail compliance with Article 28 of the GDPR concerning subcontracting, notably the conclusion of a contract or another legal act that will bind the SNCA and the CTIE with the Minister, which must provide for all the elements referred to in Article 28.3 of the GDPR.

10.

Finally, the bill as amended provides that data related to technical inspections is retained for a period of ten years after the vehicle is taken out of circulation. According to the commentary on the amendments, this duration aligns with the data retention period of the national database of road vehicles referred to in Article 4, paragraph 7, subparagraph 3 of the amended law of February 14, 1955, concerning the regulation of traffic on all public roads. This alignment of retention periods appears coherent to the CNPD.

11.

Thus, the bill as amended specifies the types of data processed, the purposes of processing this data, the entities to which the data is communicated and for what purposes, the qualifications of the parties involved (data controller and processors), and the data retention period. These clarifications thus respond to the constraints of Article 6.3 of the GDPR.

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including measures aimed at ensuring lawful and fair processing, such as those provided for in other specific processing situations as stipulated in Chapter IX.

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12.

Finally, the CNPD reiterates its remarks, already expressed in its opinion of February 8, 2023, regarding the anonymization of data that will be transmitted to the European Commission by the Minister.

Thus adopted in Belvaux on July 14, 2023.

The National Commission for Data Protection

Tine A. Larsen
President

Thierry Lallemand
Commissioner

Lare Lemmer
Commissioner

Alain Herrmann
Commissioner

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